

civil penalties between the affected aggrieved employees”. (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “The court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “Where the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

G. Attorney Fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$5,000 for the plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-07.

H. Discussion and Conclusion

The Court finds that the settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

Counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. Five percent of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

12. 9:00 AM CASE NUMBER: C25-00221
CASE NAME: GRAVES CONSTRUCTION GROUP SERVICES, INC. VS. ELITE MD, INC., A CALIFORNIA CORPORATION
HEARING ON DEMURRER TO: CROSS-COMPLAINT OF ELITE MD, INC.
FILED BY: JUDDS ALL TRADE INC
TENTATIVE RULING:

Cross-defendant Judds All-Trade Inc. demurs to the cross-complaint filed by Elite MD. (Judds is named in the cross-complaint as All-Trade Engineering & Design; the cross-complaint never mentions “Judds”. The demurrer acknowledges the name used in the cross-complaint as a dba of Judds, however, and apparently it is not disputed that the demurring party is the entity being sued in the cross-complaint as All-Trade. The Court will use that name for convenience.)

The demurrer is unopposed, and it is **sustained** with leave to amend.

Elite is the customer on a construction project to build out a medical office. The general contractor, Graves, sues Elite for collection. Elite brought this cross-complaint against Graves and several businesses alleged to be subcontractors or service providers to Graves, alleging in extremely vague and general terms that the construction featured delays and defects. All-Trade is mentioned in the cross-complaint only in the initial listing of parties, with the allegation that it “performed architectural, engineering and design services for Elite”. It is not alleged, however, that there existed any direct contractual relation between Elite and All-Trade.

All-Trade (and the other alleged subs) are sued only in Count 2 on a third-party-beneficiary contract theory, and in Count 3 for general negligence. As All-Trade correctly states, however, the cross-complaint is entirely devoid of the slightest factual allegation as to what duties any of these subs was contracted to perform, or what they are alleged to have done wrong or not done right. There is no factual allegation of what breaches of contract or duty Elite claims to have suffered. It appears that the relevant text of the cross-complaint was likely copied verbatim out of a formbook somewhere.

If Elite actually thinks it has any factual basis for a claim against All-Trade, it may amend to allege one. If it doesn’t, it should drop All-Trade as a party. A first amended cross-complaint may be filed and served by May 8. If none is filed by then, it will be taken that Elite is acknowledging that it has no viable claim against All-Trade.

13. 9:00 AM CASE NUMBER: C25-00225
CASE NAME: VALENTINA HOEVEN VS. CONTRA COSTA COUNTY
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

This motion was dropped by the parties.

14. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RICHMOND HOUSING RENOVATION, LLC
TENTATIVE RULING:

Defendants Richmond Housing Renovation, LLC, Richmond Community Foundation and Richmond Community Foundation dba RCF Connects’ demurrer to the complaint is **sustained with leave to amend as to** Richmond Housing Renovation, LLC. As to Richmond Community Foundation